



CHAPTER xcvi.

An Act to regulate the expenditure of money by the London County Council on capital account during the current financial period and the raising of money to meet such expenditure and for other purposes.

A.D. 1904.

[22nd July 1904.]

WHEREAS the powers of the London County Council (in this Act referred to as "the Council") for the expenditure of money on capital account up to the thirtieth day of September one thousand nine hundred and four are limited by the London County Council (Money) Act 1903 (in this Act referred to as "the Act of 1903") and the Acts wherewith the same is to be read and have effect :

3 Edw. 7.
c. cxxviii.

And whereas estimates have been prepared by the various committees of the Council of the expenditure on capital account which will or may be required in the execution of the powers and duties respectively delegated to them for the financial year ending the thirty-first day of March one thousand nine hundred and five and also for the following six months ending the thirtieth day of September one thousand nine hundred and five (which periods collectively are herein-after referred to as "the financial period") and all those estimates have been considered and approved by the finance committee of the Council in accordance with the provisions of the Local Government Act 1888 and the estimates as so approved have been adopted by the Council :

51 & 52 Vict.
c. 41.

And whereas the various purposes for which money is required to be expended on capital account during the financial period and the sums estimated to be required in respect of each such purpose are set out in the schedule to this Act (Part I.) and such sums amount in the aggregate to nine million five hundred and forty-seven thousand eight hundred and seventy-seven pounds :

A.D. 1904.

And whereas the Council are promoting a Bill in the present session of Parliament under the title of "London County Council (General Powers)" by which among other things powers are sought to enable the Council to purchase lands for fire brigade purposes and for the widening of Piccadilly and also to enlarge their existing powers of expending money in investigating matters of general importance and it is estimated that it will or may be necessary during the financial period to expend on capital account in the execution of the powers to be conferred by the said Bill (if the same be passed into an Act during the present session) the sum of sixty-six thousand eight hundred and fifty pounds:

And whereas the Council are promoting a Bill in the present session of Parliament under the title of "London County Council (Tramways and Improvements)" under which it is proposed amongst other things to enable the Council to construct new tramways to purchase alter and reconstruct existing tramways to widen and improve certain streets to erect buildings in connection with their tramway undertaking and to purchase lands for those purposes and it is estimated that it will or may be necessary during the financial period to expend on capital account in the execution of the powers to be conferred by the said Bill (if the same be passed into law during the present session) the sum of sixty-five thousand pounds:

And whereas the Council are promoting a Bill in the present session of Parliament under the title of "Thames River Steamboat Service" under which powers are sought to enable the Council to acquire and construct piers and landing places on the River Thames in the administrative county of London and to make provision for a service of vessels for passengers and parcels and it is estimated that it will or may be necessary during the financial period to expend on capital account in the execution of the powers to be conferred by the said Bill (if the same be passed into law during the present session) the sum of one hundred and fifty thousand pounds:

And whereas it is expedient that provisions such as are herein-after contained should be made under which the Council may (if and so far as they may determine) lend to the council of the metropolitan borough of Saint Marylebone and the council of that borough may (if and so far as they may be authorised by any Act of Parliament passed in the present session so to do) borrow from the Council during the financial year such moneys not exceeding in the whole the amount herein-after specified as may be required

by the council of the said borough for the purpose of purchasing the undertaking and business of the Metropolitan Electric Supply Company Limited in the said borough as defined by the Electric Lighting Order Confirmation (No. 1) Act 1901: A.D. 1904.

And whereas it has been estimated that the amounts which the Council will or may require for loans to other bodies and local authorities and persons as herein-after defined during the financial period (including the said loan to the council of the metropolitan borough of Saint Marylebone) will be not exceeding four million nine hundred and twenty-two thousand five hundred pounds as set out in Part IV. of the schedule to this Act:

And whereas under the Education (London) Act 1903 the Council on the first day of May one thousand nine hundred and four became the education authority for the administrative county of London for the purposes of the Education Acts 1870 to 1903 and it is expedient that the provisions herein-after contained should be made with respect to the repayment to and application by the Council of moneys borrowed by the school board for London from the Council prior to the said date and not expended by the said school board:

And whereas it will or may be necessary for the Council to provide during the financial period a working balance for the purposes of the said last-mentioned Acts and it is expedient that the powers herein-after contained in reference thereto should be conferred upon the Council:

And whereas it is expedient that subject to the provisions of this Act the Council should have power to raise for the several purposes mentioned in this Act such sums of money as they may require not exceeding the amounts herein-after prescribed:

And whereas it is also expedient that in the circumstances and subject to such consent as herein-after mentioned the Council should have certain limited powers of expenditure on capital account in addition to the sums estimated as aforesaid:

And whereas the powers for raising money given by this Act are (to the extent set out in Part V. of the said schedule) re-grants of powers already conferred on the Council by the Act of 1903 but not exercised:

And whereas it is expedient to make other provisions as in this Act set forth:

A.D. 1904.

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited for all purposes as the London County Council (Money) Act 1904 and the London County Council (Money) Acts 1875 to 1903 and this Act may be cited together as the London County Council (Money) Acts 1875 to 1904.

Construction
of Act.

2. This Act shall subject to the provisions thereof be read and have effect as one with the Metropolitan Board of Works (Loans) Acts 1869 to 1871 and the London County Council (Money) Acts 1875 to 1903 :

But all consolidated stock created by the Council shall be charged upon the county rate in substitution for the consolidated rate.

Interpreta-
tion.

3. In and for the purposes of this Act—

The expression "the Council" shall mean the London County Council :

The expression "metropolitan borough council" shall mean the council for a metropolitan borough constituted under the London Government Act 1899 :

The expression "the school board" shall mean the school board for London :

The expression "Main Drainage Acts" shall mean and include the following Acts (that is to say) :—

21 & 22 Vict.
c. 104.

The Metropolis Management Amendment Act 1858 ;

26 & 27 Vict.
c. 68.

The Metropolitan Main Drainage Extension Act 1863 ;

28 & 29 Vict.
c. 19.

An Act to extend the period for borrowing the sum authorised to be raised under the Metropolitan Main Drainage Extension Act 1863 ;

and any other Acts relating to the main drainage of the metropolis :

The expression "the financial year" shall mean the period from the first day of April one thousand nine hundred and four to the thirty-first day of March one thousand nine hundred and five both dates inclusive :

The expression "the following six months" shall mean the period from the first day of April one thousand nine hundred and five to the thirtieth day of September one thousand nine hundred and five both dates inclusive: A.D. 1904.

The expression "the financial period" shall mean the financial year and the following six months:

The expression "the appointed day" shall mean the first day of May one thousand nine hundred and four.

4. The Council may during the financial year and the following six months respectively expend on capital account for the purposes mentioned in Parts I. and II. of the schedule to this Act such sums as they may think fit not exceeding the amounts respectively mentioned in the said parts of the said schedule in relation to such purposes for the said periods respectively. Moneys expended under the authority of this section for those purposes shall be repayable within such term not exceeding in any case sixty years as the Council with the consent of the Treasury may determine: Power to expend money for sundry purposes during financial period.

Provided that any money expended for any of such purposes during the six months ending the thirtieth day of September one thousand nine hundred and five shall be expended on account of the financial year ending the thirty-first day of March one thousand nine hundred and six.

5.—(1) If by reason of unforeseen circumstances the amounts by this Act authorised to be expended for any of the various purposes in this Act set forth are found to be insufficient the Council may from time to time during the financial period apply to the Treasury for authority and the Treasury may authorise the Council to expend for any such purposes such further sums as may be proved to their satisfaction to be necessary or desirable not exceeding in the aggregate in the financial year two hundred and fifty thousand pounds and in the following six months one hundred thousand pounds. And the Treasury in giving such authority shall prescribe the times within which such sums shall be repaid. Expenditure for general purposes. 250,000l. 100,000l.

(2) The tables to accompany the Bill of the Council for powers to expend and raise money in the next session of Parliament shall specify any particular sums authorised under this section and the application thereof.

6. If under any Act of Parliament passed in the present session the council of the metropolitan borough of Saint Marylebone shall be authorised to borrow moneys to the amount herein-after Loan to council of metropolitan borough of

A.D. 1904.
Saint Mary-
lebone for
purchase of
electric light-
ing under-
taking.

1,415,000*l.*

specified for the purpose of purchasing the undertaking and business of the Metropolitan Electric Supply Company Limited in the metropolitan borough of Saint Marylebone as defined by the Electric Lighting Order Confirmation (No. 1) Act 1901 then the Council may during the financial year lend to the council of the metropolitan borough of Saint Marylebone and the council of that borough may borrow for that purpose such sum as may be required not exceeding one million four hundred and fifteen thousand pounds.

Moneys borrowed from and lent by the Council under this section shall be repaid to the Council with interest within such time after the borrowing as the Council with the approval of the Treasury shall determine not exceeding thirty-eight years.

Power to
lend to
metropolitan
borough
councils cor-
porations or
other public
bodies.

1,250,000*l.*
700,000*l.*

7.—(1) Where a metropolitan borough council desire in pursuance of authority vested in them by Act of Parliament to borrow money for any purpose thereby authorised then during the financial period the Council may lend to the metropolitan borough council and the metropolitan borough council may borrow from the Council such money as the Council think fit and as the metropolitan borough council are authorised and desire to borrow but the total amount of such loans shall not exceed one million two hundred and fifty thousand pounds in the financial year and seven hundred thousand pounds in the following six months.

(2) Where any corporation or other public body (not being a metropolitan borough council a board of guardians the managers of the metropolitan asylum district or the school board) having powers to levy directly or indirectly rates in the administrative county of London or to make charges on rates leviable in that county or to take or charge within that county dues or impositions in the nature of rates desire in pursuance of authority vested in them by Act of Parliament to borrow money for any purpose thereby authorised then during the financial period the Council may lend to such corporation or other public body and such corporation or other public body may borrow from the Council such money as the Council think fit and as such corporation or other public body are authorised and desire to borrow but the total amount of all such loans shall not exceed fifty thousand pounds in the financial year and fifty thousand pounds in the following six months.

50,000*l.*
50,000*l.*

(3) Money borrowed from and lent by the Council under this section shall be repaid to the Council with interest within such time after the borrowing as the borrowers with the consent of the Local Government Board or the Treasury as the case may be where such

consent is necessary to the borrowing and the Council with the approval of the Treasury shall agree. Provided that the time after the borrowing within which such money shall be repaid to the Council shall not exceed in the case of loans to the managers of district schools and asylums sixty years and in all other cases the following periods viz. in the case of a loan for the purpose of improvements in relation to streets or bridges or for the purpose of purchase of land in fee simple or for the purposes of the Housing of the Working Classes Acts 1890 to 1903 or for the purpose of financial adjustments under the London Government Act 1899 sixty years for electric lighting purposes fifty years and for any other purpose thirty years.

A.D. 1904.

8. Where a board of guardians of a poor law union or parish wholly or for the greater part in the administrative county of London desire in pursuance of authority vested in them by Act of Parliament to borrow money for any purpose thereby authorised then during the financial period the Council may lend to the board of guardians and the board of guardians may borrow from the Council such money as the Council think fit and as the board of guardians are authorised and desire to borrow but the aggregate amount of all such loans shall not exceed five hundred thousand pounds in the financial year and two hundred and fifty thousand pounds in the following six months.

Power to lend to boards of guardians.

500,000l.

250,000l.

Money borrowed from and lent by the Council under this section shall be repaid to the Council with interest within such time after the borrowing as the borrowers with the consent of the Local Government Board and the Council with the approval of the Treasury shall agree not exceeding sixty years.

9. The Council may during the financial period lend to the managers of the metropolitan asylum district in addition to the sums heretofore authorised to be lent by the Council to the said managers such sums as the said managers are authorised by the Local Government Board to borrow in pursuance of any Act for the time being in force not exceeding in the whole in the financial year three hundred and fifty thousand pounds and in the following six months one hundred thousand pounds as though the said sums were included in the amount authorised to be lent for such purposes by section 37 of the Metropolitan Board of Works (Loans) Act 1869 and the Acts amending the same.

Power to lend to managers of metropolitan asylum district.

350,000l.

100,000l.

10.—(1) Where the school board desire at any time or times prior to the appointed day in pursuance of authority vested in them by Act of Parliament to borrow money for any purpose thereby

Power to lend to school board and

A.D. 1904. authorised then during the portion of the financial year prior
— expenditure by Council under Education Acts 1870 to 1903. 250,000*l.* to the appointed day the Council may lend and the school board may borrow from the Council such money as the Council think fit and as the school board are authorised and desire to borrow not exceeding two hundred and fifty thousand pounds.

(2) All moneys borrowed from and lent by the Council under this section which shall have been expended by the school board shall for the purposes of repayment be deemed to have been borrowed and expended by the Council under and for the purposes of the Education Acts 1870 to 1903.

(3) As from the appointed day all money borrowed from and lent by the Council under this section and not expended by the school board shall be repaid to the Council and shall be applicable and applied by the Council for capital expenditure for the purposes of the Education Acts 1870 to 1903.

(4) Moneys expended by the Council under the authority of this section shall be repayable within such term not exceeding sixty years as the Council with the consent of the Treasury may determine.

Loans to persons for purposes of Small Dwellings Acquisition Act 1899.

5,000*l.*
2,500*l.*

11. Where any person or persons desire under the provisions of the Small Dwellings Acquisition Act 1899 to borrow money for the purposes thereby authorised then during the financial period the Council may subject to the provisions of the said Act lend and such person or persons may borrow from the Council such money as the Council think fit and as such person or persons are authorised and desire to borrow Provided that sums so lent shall not exceed in the aggregate five thousand pounds in the financial year and two thousand five hundred pounds in the following six months.

Money borrowed from and lent by the Council under this section shall be repaid to the Council with interest within such time after the borrowing not exceeding thirty years as such person or persons and the Council shall agree.

Protection of Council in case of certain loans.

12. Where under the authority of this or any other Act the Council lend any money to any corporation public body or persons the exercise of whose powers of borrowing is subject to the consent of the Local Government Board the sanction of that Board to the borrowing of such money shall in every such case be conclusive evidence that such corporation public body or persons had when such sanction was given power to borrow such money.

13. Money lent by the Council under the powers of this Act during the six months ending the thirtieth day of September one thousand nine hundred and five shall be lent on account of the financial year ending the thirty-first day of March one thousand nine hundred and six.

A.D. 1904.

As to money
lent by
Council in
certain cases.

14. In order to raise the money for the several purposes for which the Council are by this Act authorised to expend or lend money the Council may from time to time create consolidated stock and the following provisions shall have effect:—

Power to
raise money
by creation
of consoli-
dated stock.

- (i) Where the Council under the authority of this Act create consolidated stock to raise money to enable them to meet expenditure or make a loan repayable within a period of less than sixty years from the date of such expenditure or loan the Council shall from time to time carry to the consolidated loans fund such sums as the Treasury approve as being in their opinion sufficient to redeem within the period authorised for the repayment of such expenditure or loan an amount of consolidated stock equal to that so created:
- (ii) Where the Council create consolidated stock for the purpose of any scheme made by the Metropolitan Board of Works or the Council under the Housing of the Working Classes Acts 1890 to 1903 or any enactments repealed by those Acts or for any other purpose the cost of which is chargeable as a special county purpose all money required for payment of dividends on and the redemption of all consolidated stock created for such purpose shall be charged to the special county account to which the expenditure for the purposes of the said Acts is chargeable:
- (iii) Consolidated stock for the purposes of this Act may be created by the Council from time to time in such amounts and at such times only as the Council shall actually require for the said purposes respectively.

15.—(i) Money borrowed from and lent by the Council under the provisions of this Act may be made repayable either in one sum or by instalments or by a series of equal annual or other instalments to include both principal and interest or otherwise as may be agreed between the Council and the borrowers.

Repayment
of moneys
lent by
Council.

(ii) All sums received by the Council in respect of interest on or principal of any loan made by them under this Act shall be carried to the consolidated loans fund.

A.D. 1904.

New redeem-
able consoli-
dated stock.

16. The Council may by a resolution passed before the issue of any consolidated stock created under this Act determine that such stock shall be issued upon the terms that the Council shall not be bound to redeem the same at any fixed date but the annual sum to be carried to the consolidated loans fund under section 27 of the Metropolitan Board of Works (Loans) Act 1869 in respect of such stock shall where the money raised by the stock is not required to be repaid within a shorter period than sixty years be calculated on the same basis as if such stock had to be redeemed at par at the expiration of sixty years from the date of the issue thereof.

All such stock shall be redeemable by and at the option of the Council at par in such sums and proportions and in such order and manner whether by drawings or otherwise as the Council may from time to time determine subject nevertheless to any terms and conditions expressed in any resolution for the creation or issue of such stock.

With regard to any such stock the Council may by a resolution passed at any time and from time to time with the sanction of the Treasury determine that during any period not exceeding thirty years from the date of the resolution they will not exercise their option of redeeming the same.

Any prospectus issued by the Council inviting tenders for any such stock shall state in general terms—

- (a) the period at after or within which and the conditions upon which the option of the Council to redeem the same may be exercised; and
- (b) the financial provision required by statute to be made by way of sinking fund in respect of such stock.

All stock created under the powers of this section shall form part of and rank equally with the consolidated stock created under the powers of the London County Council (Money) Acts 1896 to 1903 and shall also rank equally with all consolidated stock created under the powers of any subsequent Act if the same be thereby declared to rank equally with consolidated stock created under the powers of this section.

Employment
of money of
consolidated
loans fund
for expendi-
ture or loans.

17.—(1) Where the Council are by this Act authorised to raise money for expenditure for any purpose on capital account they may instead of raising such money or any part thereof by the issue of consolidated stock and with the approval of the Treasury employ for that purpose any money for the time being

standing to the capital account of the consolidated loans fund and realise for that purpose any securities in which such money shall be at the time invested. A.D. 1904.

(2) The employment by the Council of such money shall be deemed to be in substitution for the exercise of the powers of the Council under this Act of raising the amount of such money by means of the issue of consolidated stock.

(3) No such money shall be so employed unless provision be made in such manner as the Treasury approve for replacing the same in the consolidated loans fund at or before the date (if any) at which consolidated stock redeemable by means of such money is required to be redeemed and (as regards moneys accumulated in respect of consolidated stock which is not required to be redeemed at any fixed date) for so replacing the same within such period not exceeding sixty years from the date of the employment of such money as the Council with the consent of the Treasury may determine and not exceeding the period within which the money if borrowed would be repayable :

And in every case the Council shall in each year raise as part of the county rate such sum as the Treasury approve as being in their opinion a proper and sufficient contribution in respect of that year towards the replacement at or before the date or within the period aforesaid of the money employed for such purpose and for the payment of interest on the money so employed and such sums shall be carried by the Council to the consolidated loans fund.

(4) Where the Council are by this Act authorised to make a loan they may instead of raising money for any such loan by the creation of consolidated stock employ for any such loan any money for the time being standing to the capital account of the consolidated loans fund Provided that no such money shall be employed for any loan repayable at a date later than the date (if any) at which the consolidated stock redeemable by means of the money so used is required to be redeemed and (as regards stock which is not required to be redeemed at any fixed date) after a longer period than sixty years from the date of borrowing.

18.—(1) The Council may during the financial period employ (with the approval of the Treasury) any money for the time being standing to the capital account of the consolidated loans fund for providing a working balance for the purposes of the Education Acts 1870 to 1903 not exceeding in the aggregate the sum of one hundred thousand pounds.

Power to resort to consolidated loans fund for provision of working balance for purposes of Education Acts.

A.D. 1904.

(2) All moneys so employed by the Council under the powers of this section shall be replaced in the consolidated loans fund within a period of five years from the end of the financial year in which such moneys are so employed and the Council shall in each year raise as part of the county rate and carry to the consolidated loans fund such sum as the Treasury approve as being in their opinion a proper and sufficient contribution in respect of that year towards such replacement and for the payment of interest on the moneys so employed.

Power to
employ con-
solidated
loans fund for
payment of
instalments
of debts
transferred
from school
board.

19.—(1) If and so far as any moneys applicable for that purpose transferred from the school board to the Council under the Education Acts 1870 to 1903 are insufficient for the payment of the principal or any instalments of principal due in respect of debts and liabilities transferred from the school board to the Council under the said Acts the Council may as from the appointed day from time to time apply in payment of the principal or instalments of principal due in respect of such debts and liabilities any money for the time being standing to the capital account of the consolidated loans fund and realise for that purpose any securities in which such money shall be at the time invested.

(2) The Council shall in each year raise as part of the county rate such sum as the Treasury approve as being in their opinion a proper and sufficient contribution in respect of that year towards the provision of the sums from time to time required for payment of such principal or instalments of principal at or before the date on which the same will become payable and for the payment of interest on such debts and liabilities and such sums shall be carried by the Council to the consolidated loans fund.

Investment
of money of
consolidated
loans fund.

20. The power of the Council under section 15 of the London Council (Money) Act 1889 to temporarily invest any money for the time being standing to the capital account of the consolidated loans fund in respect of stock which the Council are not required to redeem at any fixed date shall only extend to any period during which by any resolution the Council may have bound themselves not to exercise their option of redeeming such stock :

And if the Council at any time while they have any such money invested or available for investment require to expend money for any purpose on capital account or to make any loan under any statutory power which would otherwise involve the issue of additional stock they shall before issuing any more stock which they are not required to redeem at any fixed date employ subject

to the provisions of the last preceding section such first-mentioned money and if need be realise for the purpose any securities in which that money is at the time invested.

A.D. 1904.

21. Where stock is issued under this Act subject to a condition that the money to be raised thereby shall be paid up by instalments the Council may pay dividend on the total nominal amount of such stock from any date fixed at the time of issue although the instalments or some or one of them may not have been payable until after that date. If the amount so paid by way of dividend exceed the sum which would have been payable on the portion of the stock representing the money actually paid up the difference may be paid out of the proceeds of the issue of the stock to the consolidated loans fund but not at any time later than twelve months from the date of issue.

Power after
issue of
stock to
apply money
raised by
stock to
make up
dividends
from fixed
dates.

22.—(1) The Council may—

- (a) for the purpose of the purchase or redemption of consolidated stock issued before the passing of this Act raise money by the issue of consolidated stock; or
- (b) with the consent of the holder of consolidated stock issued before the passing of this Act convert it into another denomination of consolidated stock by issuing the latter stock in substitution for the stock formerly held by such holder (in this Act referred to as "converted stock");

Redemption
or conver-
sion of stock.

and may issue consolidated stock under this Act accordingly.

(2) The Council may in the case of any conversion of stock make such reasonable payment as they think fit to the holder of such stock in connection with and for the purpose of effecting the conversion and any such payment may be either in money or stock or partly in the one and partly in the other. Any such payment in money may be made out of moneys raised by the issue of stock or (subject to the provisions of this Act) out of the consolidated loans fund.

(3) Where stock is issued for the purpose of raising money to purchase or redeem or convert stock the payments into the consolidated loans fund shall be such as appear to the Council with the approval of the Treasury sufficient to provide for the redemption or extinction of the new stock within the remainder of the period for the redemption of the stock so purchased redeemed or converted and all stock so purchased redeemed or converted shall be forthwith cancelled.

A.D. 1904.

(4) Where the holder of any stock is one of the persons enabled by the Lands Clauses Consolidation Act 1845 to sell land under that Act he may consent to any conversion under this section as if he were the absolute owner of the stock in question and may accept money for such consent and he is hereby indemnified for giving such consent and his receipt shall be a good discharge.

(5) Where any stock is converted under this section the new stock and the dividends thereon shall be subject to the same trusts charges rights distringas and restraints as affected the stock so converted and the dividends thereon respectively and all powers of attorney requests as to dividends and other documents relating to the stock so converted and the dividends thereon or either of them shall apply to the new stock and the dividends thereon respectively.

(6) In any Act passed or instrument executed whether before or after the passing of this Act references to any stock liable to be converted in pursuance of this Act may if the stock is so converted be construed as references to the new stock and in the case of any testamentary instrument whether executed before or after the passing of this Act any disposition which but for the passing of this Act would have operated as a specific or demonstrative bequest of any such stock shall if the same is so converted be construed as a specific or demonstrative bequest of such new stock and if the same is not so converted but is redeemed shall be construed as a pecuniary legacy of a sum of money equal to the redemption money of the stock so redeemed.

32 & 33 Vict.
c. 102. s. 38
not to extend
to money
raised under
this Act.

Limit to
exercise of
borrowing
powers.

23. The limitation on the borrowing power of the Council contained in section 38 of the Metropolitan Board of Works (Loans) Act 1869 shall not extend to money raised by the Council in conformity with and for purposes mentioned in this Act.

24. During the financial period the Council shall not (except for such temporary period not exceeding six months as the Treasury may sanction) raise otherwise than in conformity with and to the extent mentioned in this Act any money under any powers of borrowing conferred upon the Council either by this Act or by any other Act. Provided always that the limitations contained in this section shall not extend to limit or control the raising of money under the authority of section 8 of the Metropolitan Board of Works (Loans) Act 1875.

Incorporation
of sections 27
to 43 of 48 &
49 Vict. c. 50.

25. Sections 27 to 43 of the Metropolitan Board of Works (Money) Act 1885 are incorporated with this Act and shall be applicable to all stock created under the powers of this Act.

26. Section 22 of the London County Council (Money) Act 1901 (the marginal note of which is "Power to lend temporarily") shall extend and apply to any sum of money which the Council may have in hand under this Act.

A.D. 1904.
Power to
lend tem-
porarily.

27. Instead of raising for any purposes by the creation and issue of stock money which they are authorised to raise by that method under the powers of this Act the Council may raise for those purposes such money by means of bills subject to and in accordance with the provisions of section 21 of the London County Council (Money) Act 1897 :

Provisions
as to raising
money by
bills.

Provided that notwithstanding the provisions contained in sub-section (10) of section 21 of the said Act of 1897 the aggregate amount payable on bills current at any one time shall not exceed—

(a) in the case of bills issued for raising money for the purpose of the loan to the Council of the metropolitan borough of Saint Marylebone referred to in the section of this Act of which the marginal note is "Loan to council of metropolitan borough of Saint Marylebone for purchase of electric lighting undertaking" the sum of one million five hundred thousand pounds ; and

(b) in the case of any other bills issued under the powers of this section the sum of two million pounds ;

except in either case by the amount payable on bills issued shortly before any other bills fall due in order to pay off those bills :

Provided also that the provisions of subsection (11) of section 21 of the said Act of 1897 with respect to payments into the consolidated loans fund shall not apply to any bills of the class (a) above referred to.

28. Sections 8 9 10 and 11 of the Forgery Act 1861 (which sections relate to the forgery of and other frauds relating to Exchequer bills) shall apply to London county bills and shall have effect as if "Exchequer bill" in those sections included "London county bill."

As to for-
gery &c. of
London
county bills.

29. All costs and expenses of the Council in the execution of this Act (except so far as they may be otherwise provided for by this or any other Act) shall be defrayed as payments for general county purposes within the meaning of the Local Government Act 1888 and the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act shall be paid by the Council in like manner.

As to pay-
ments under
this Act.

A.D. 1904.

The SCHEDULE referred to in the foregoing Act.

PART I.

ESTIMATED REQUIREMENTS 1ST APRIL 1904 TO 30TH SEPTEMBER 1905
FOR CAPITAL EXPENDITURE BY THE COUNCIL.

Reference to Section of foregoing Act.	Acts for the Purposes of which the Borrowing Power is required.	Nature of Expenditure.	Estimated Requirement for Year ending 31st March 1905 not exceeding		Estimated Requirement for Half-Year ending 30th September 1905 not exceeding	
			£	£	£	£
Sec. 4 . . .	1. Fire Brigade Act 1865 and Acts amending or extending the same.	Provision of sites and erection of stations for the Metropolitan Fire Brigade additions to permanent plant and hydrants.		97,950		35,500
1 i	2. Acts relating to parks gardens and open spaces.	Acquisition laying out planting and improvement of parks gardens and open spaces boundary walls and fencing buildings conveniences shelters bandstands &c. gymnasia lighting and other works contributions towards purchase acquisition laying out and improvement of open spaces gardens and recreation grounds.		85,000		28,000
	3. Thames Tunnel (Greenwich to Millwall) Act 1897.	Construction of subway under the River Thames between Greenwich and Millwall — Provision for purchase of property and compensation (completion).		20,250		
	4. Thames Tunnel (Rotherhithe and Ratcliff) Act 1900 and the London County Council (General Powers) Act 1901.	Construction of tunnel under the River Thames and approaches including provision for purchase of property and compensation and the rehousing of persons displaced.		389,140		227,000
	5. Housing of the Working Classes Act 1890 and Acts amending or extending the same.	(a) Carrying out and contributing towards schemes acquisition of lands erection of dwellings and other expenditure under the Act.	508,195		163,200	
		(b) Boundary Street Garden—Erection of bandstand adaptable for use as shelter.	490	508,685		163,200
	6. Public Health (London) Act 1891.	Provision of accommodation for the holding of inquests—Sites for and erection of coroners' courts.		2,650		1,500
		Carried forward		£1,102,775		£455,200.

THE SCHEDULE—continued.

A.D. 1904.

Reference to Section of foregoing Act.	Acts for the Purposes of which the Borrowing Power is required.	Nature of Expenditure.	Estimated Requirement for Year ending 31st March 1905 not exceeding		Estimated Requirement for Half-Year ending 30th September 1905 not exceeding	
			£	£	£	£
Sec. 4		Brought forward		1,102,775		455,200
	7. Metropolis Manage- ment Acts and various Acts autho- rising improvements and works.	Purposes mentioned in section 144 of the Metropolis Manage- ment Act 1855 and section 72 of the Metropolis Manage- ment Amendment Act 1862 Contributions to local improve- ments and expenditure upon improvements and works authorised by various Acts for which no provision is elsewhere made.		400,000		150,000
	8. London Council (General Powers) Act 1891.	St. George's Place Knightsbridge improvement (completion).		2,000		
	9. London County Council (General Powers) Act 1893.	Electric lighting of Westminster Bridge.		1,050		
	10. London County Council (Tower Bridge Southern Approach) Act 1895.	Southern approach to the Tower Bridge — Purchase of property compensation and other incidental expenditure.		7,000		1,000
	11. London County Council (Vauxhall Bridge) Act 1895.	Rebuilding Vauxhall Bridge over the River Thames and con- struction of approaches in- cluding purchase of property and compensation.		79,700		33,000
	12. London County Council (General Powers) Act 1895 and other Acts.	Purchase of the interests of sundry metropolitan borough councils in the surplus lands or other recoupment arising from improvements carried out at the joint cost of the Council and the borough councils (or their predecessors).		1,500		1,500
	13. London County Council (Improve- ments) Act 1897.	Tower Bridge northern ap- proach — Purchase of pro- perty compensation works and other incidental expenditure including the rehousing of persons displaced and recon- struction of bridge under the London and Blackwall Railway.		36,000		12,000
	14. London County Council (General Powers) Act 1897.	(a) Long Lane Southwark widening and Tabard Street continuation—Purchase of pro- perty compensation including the rehousing of persons dis- placed.		13,275		1,000
		(b) Battersea Park Road widen- ing—Works.				
	15. London County Council (General Powers) Act 1898.	(a) York Road Battersea and Wandsworth widening — Pur- chase of property compensation and works including the re- housing of persons displaced.	8,050		5,500	
		(b) Albert Embankment widen- ing—Completion.				
		(c) Rosemary Branch Bridge over Regent's Canal — Reconstruc- tion (completion).	500			
		(d) Historical buildings—Works for the preservation of No. 17 Fleet Street.	2,650		500	
				12,100		6,000
		Carried forward		£1,655,400		£659,700

A.D. 1904.

THE SCHEDULE—continued.

Reference to Section of foregoing Act.	Acts for the Purposes of which the Borrowing Power is required.	Nature of Expenditure.	Estimated Requirement for Year ending 31st March 1905 not exceeding		Estimated Requirement for Half-Year ending 30th September 1905 not exceeding	
			£	£	£	£
Sec. 4 -	16. London County Council (Improve- ments) Act 1899.	Brought forward - -		1,465,400		658,700
		(a) Holborn to Strand (new street)—Purchase of property compensation works and other expenditure incidental to the improvement including the re- housing of persons displaced.				
		(b) Southampton Row widening— Purchase of property com- pensation and works including the rehousing of persons dis- placed.	644,730		327,370	
		(c) Wandsworth Road Lamberh widening (completion).				
		(d) High Street Kensington widening—Purchase of property compensation and works.				
		(e) Cat and Mutton Bridge Shoreditch—Reconstruction.	10,000		700	
				654,730		328,070
	17. London County Council (Improve- ments) Act 1900.	(a) Thames Embankment exten- sion and Westminster improve- ments at Millbank—Purchase of property compensation works and other expenditure incidental to the improvement.				
		(b) Mare Street Hackney widening—Purchase of pro- perty compensation and works including the rehousing of persons displaced.				
		(c) Goswell Road widening— Purchase of property compen- sation and works including the rehousing of persons displaced.				
		(d) Saint John Street Clerken- well widening—Rehousing of persons displaced and comple- tion of works.				
		(e) Archway Road widening— Purchase of property compen- sation and works.		678,505		109,200
		(f) Kentish Town Road widen- ing (completion).				
		(g) Nine Elms Lane widening— Purchase of property compensa- tion and works including the rehousing of persons displaced.				
		(h) Widenings at Battersea Rise —Purchase of property com- pensation and works.				
		(i) Widenings at Blackheath Road Blackheath Hill and New Road—Purchase of property compensation and works.				
		(j) High Street and Gardener's Lane Putney widening—Pur- chase of property compensa- tion and works.				
		Carried forward - -		£2,988,725		£1,096,970

THE SCHEDULE—continued.

A.D. 1904.

Reference to Section of foregoing Act.	Acts for the Purposes of which the Borrowing Power is required.	Nature of Expenditure.	Estimated Requirement for Year ending 31st March 1905 not exceeding		Estimated Requirement for Half-Year ending 30th September 1905 not exceeding	
			£	£	£	£
Sec. 4	18. London County Council (Tramways and Improvements) Act 1901.	Brought forward		2,988,725		1,096,870
		(a) Widening at Red Lion Street South Street Garratt Lane Defoe Road and High Street Tooting—Purchase of property compensation and works including the rehousing of persons displaced.		167,780		67,500
		(b) Camberwell New Road widening—Purchase of property compensation and works.				
		(c) Merton Road Wandsworth widening—Works.				
	19. London County Council (General Powers) Act 1901.	Central Street St. Luke's widening—Purchase of property compensation and works including the rehousing of persons displaced.		30,700		13,500
	20. London County Council (Tramways and Improvements) Act 1902.	(a) Hampstead Road widening—Purchase of property compensation and works and other incidental expenditure.				
		(b) Fulham Palace Road High Street Fulham and Church Street widening—Purchase of property compensation and works.		317,620		111,700
		(c) Denmark Hill Champion Park Grove Lane Dog Kennel Hill Grove Vale and Lordship Lane widening—Purchase of property compensation and works.				
		(d) Queen's Road Peckham widening—Purchase of property compensation and works.				
	21. London County Council (Subways and Tramways) Act 1902.	Construction of a subway for tramway between Theobalds Road and the Victoria Embankment.		67,000		23,500
	22. London County Council (Tramways and Improvements) Act 1903.	Brook Green Road and Scrubs Lane widening—Purchase of property compensation and works and other incidental expenditure.				
		Southampton Row widening west side south of Vernon Place—Purchase of property works and other incidental expenditure.		56,850		14,500
		Southampton Row widening north of Vernon Place—Purchase of property compensation and other incidental expenditure.				
		Wimbledon Road and Garratt Lane Wandsworth widening—Purchase of property compensation works and other incidental expenditure.				
		Carried forward		£3,628,685		£1,317,670

A.D. 1904.

THE SCHEDULE—continued.

Reference to Section of foregoing Act.	Acts for the Purposes of which the Borrowing Power is required.	Nature of Expenditure.	Estimated Requirement for Year ending 31st March 1905 not exceeding		Estimated Requirement for Half-Year ending 30th September 1905 not exceeding	
			£	£	£	£
		Brought forward - -		3,628,685		1,317,670
Sec. 4 - -	23. Lunacy Acts -	Building enlarging and improving lunatic asylums Preparation of plans for further asylum accommodation Establishment of epileptic colony Buildings (including alterations and ad- ditions to buildings) fittings furniture equipment heating lighting drainage sinking and lining wells machinery &c. and miscellaneous expenditure in connection with the various asylums and on purchase im- provement and development of lands held therewith.		275,637		184,500
	24. Acts relating to industrial schools.	Expenditure in connection with industrial schools.		1,000		500
	25. Inebriates Acts -	Farmfield Reformatory for fe- male inebriates — Disposal of sewage formation of roads and other expenditure under the Acts.		1,800		500
	26. Weights and Mea- sures Act 1889.	Provision of offices for the verifica- tion and stamping of weights and measures (completion).		250		
	27. Local Government Act 1888.	Acquisition of property and adaptation or erection of build- ings for offices.		10,000		
			(And in addition such sum or sums as the Council with the approval of the Treasury may think fit.)			
	28. Acts relating to county bridges.	Reconstruction of Bow Bridge -		15,000		1,000
	29. Acts relating to tramways.	Purchase of tramways under- takings reconstruction and equipment of lines for electric traction including power sta- tions plant and machinery rolling stock car sheds &c. pur- chase of lands and erection of new or alteration and enlarge- ment of existing buildings con- struction of new tramways and extensions junctions &c. recon- struction of bridges construc- tion of pier and river wall at power station and rehousing of persons displaced.		1,243,270		736,935
	30. Sale of Gas Acts -	Provision of offices and appliances for testing gas-meters.		800		
	31. Electric Lighting Acts.	Provision of additional electric testing plant.		800		
		Carried forward -		£5,192,272		£2,241,105

THE SCHEDULE—continued.

A.D. 1904.

Reference to Section of foregoing Act.	Acts for the Purposes of which the Borrowing Power is required.	Nature of Expenditure.	Estimated Requirement for Year ending 31st March 1905 not exceeding		Estimated Requirement for Half-Year ending 30th September 1905 not exceeding	
			£	£	£	£
		Brought forward - - -		5,182,272		2,241,105
Sec. 4 - -	32. Main Drainage Acts	Provision of new pumping station enlargement of and improvements at existing pumping stations and outfalls engines machinery &c. purchase of property and compensation new outfall and intercepting sewers and other works.		1,019,400		361,600
	33. London Government Act 1899.	To provide for financial adjustments under the Act.		30,000		
	34. Any other Act -	To provide for possible expenditure for purposes authorised by Parliament but not included in the foregoing estimates for which it may be desirable that the Council should have borrowing power.		50,000		25,000
Sec. 10 sub-sec. (4).	35. Education Acts 1870 to 1903.	Provision of schools and other purposes of the Education Acts.		322,000		316,500
			(In addition to the amount of any unexpended balance of loans which may be transferred from the School Board for London.)			
				£3,603,672		£2,944,205
					Total	£9,547,877

PART II.

ESTIMATED CAPITAL REQUIREMENTS UNDER BILLS OF PRESENT SESSION.
UP TO 30TH SEPTEMBER 1905.

Reference to Section of foregoing Act.	Acts for the Purposes of which the Borrowing Power is required.	Nature of Expenditure.	Total Parliamentary Estimate.	Estimated Requirement for Year ending 31st March 1905.		Estimated Requirement for Half-Year ending 30th September 1905.	
				£	£	£	£
Sec. 4 -	36. Under the London County Council (General Powers) Bill 1904 (if it becomes law).	Purchase of lands—Sites for fire brigade stations.	£ 68,350		50,000		16,850
	37. Under the London County Council (Tramways and Improvements) Bill 1904 (if it becomes law).	(a) Construction and equipment of new tramways and the purchase of lands and other purposes of the tramway undertaking.	1,692,695	10,000		25,000	
		(b) Street improvements and works in connection with tramways.	657,300	5,000		25,000	
			2,349,995				
	38. Under the Thames River Steamboat Service Bill 1904 (if it becomes law).	Acquisition and construction of piers and landing-places provision of steamboats and other expenditure for the purpose of establishing a steamboat service on the River Thames.	250,000		15,000		50,000
					50,000		100,000

Carried forward

£9,820,727

A.D. 1904.

THE SCHEDULE—continued.

PART III.

Brought forward £9,829,727

SUMS WHICH MAY BE AUTHORISED BY THE TREASURY BEYOND AMOUNTS
LIMITED BY ANY SECTION OF THIS ACT.

Reference to Section of Act conferring Power.	Acts for the Purpose of which Borrowing Power is conferred.	Nature of Expenditure.	During Year ending 31st March 1905.	During Six Months ending 30th September 1905.	
			£	£	
Sec. 5 . . .	All or any of the Acts re- ferred to in this Act.	Undefined—to make good deficiencies of estimates.	250,000	100,000	£350,000

PART IV.

AMOUNTS ESTIMATED TO BE REQUIRED FOR LOANS.

Reference to Section of foregoing Act.	Purpose.	During Year ending 31st March 1905.	During Six Months ending 30th September 1905.	
		£	£	
Sec. 6 - - -	Loan to metropolitan borough council of Saint Marylebone for the purchase of portion of undertaking of Metropolitan Electric Supply Company Limited.	1,415,000		
Sec. 7 (subsec. 1) -	Loans to metropolitan borough councils -	1,250,000	700,000	
Sec. 8 - - -	Loans to boards of guardians - - -	500,000	250,000	
Sec. 9 - - -	Loans to managers of metropolitan asylum district.	350,000	100,000	
Sec. 10 (subsec. 1) -	Loans to School Board for London (for period between 1st April 1904 and the appointed day).	250,000		
Sec. 7 (subsec. 2) -	Loans to other local authorities - - -	50,000	50,000	
Sec. 11 - - -	Loans to sundry persons under the Small Dwellings Acquisition Act 1899.	5,000	2,500	
	Totals - - -	3,820,000	1,102,500	£ 4,922,500

Carried forward £ 15,102,227

THE SCHEDULE—continued.

PART V.

£ s. d.
Brought forward 15,102,227 0 0

AMOUNTS INCLUDED ABOVE WHICH ARE RE-GRANTS OF BORROWING
POWERS PREVIOUSLY GRANTED.

IN ORDER TO ASCERTAIN THE EXTENT OF THE NEW BORROWING POWERS CONFERRED BY THIS ACT IT IS NECESSARY TO DEDUCT THE FOLLOWING SUMS WHICH ARE AMOUNTS OF BORROWING POWERS CONFERRED BY THE ACT OF 1903 AND NOT HAVING BEEN EXERCISED ON THE 1ST APRIL 1904 ARE INCLUDED AGAIN IN THIS ACT.

	£	s.	d.
Fire Brigade - - - - -	132,550	0	0
Parks Gardens and Open Spaces - - - - -	113,000	0	0
Thames Tunnel (Greenwich to Millwall) Act 1897 - - - - -	20,250	0	0
Thames Tunnel (Rotherhithe and Ratcliff) Act 1900 - - - - -	453,116	15	7
Housing of the Working Classes Act 1890 and Acts amending or extending the same - - - - -	671,835	0	0
Public Health (London) Act 1891 (Buildings for Inquests) - - - - -	4,150	0	0
Metropolis Management Act 1855 the Metropolis Management Amendment Act 1862 and including improvements or works sanctioned by Parliament for which no provision is elsewhere made in this Act - - - - -	550,000	0	0
London Council (General Powers) Act 1891 - - - - -	2,000	0	0
London County Council (General Powers) Act 1893 - - - - -	1,050	0	0
London County Council (Tower Bridge Southern Approach) Act 1895 - - - - -	5,586	8	5
London County Council (Vauxhall Bridge) Act 1895 - - - - -	80,608	15	9
London County Council (General Powers) Act 1895 - - - - -	1,500	0	0
London County Council (Improvements) Act 1897 - - - - -	48,000	0	0
London County Council (General Powers) Act 1897 - - - - -	14,275	0	0
London County Council (General Powers) Act 1898 - - - - -	18,100	0	0
London County Council (Improvements) Act 1899 - - - - -	798,857	8	10
London County Council (Improvements) Act 1900 - - - - -	787,795	0	0
London County Council (Tramways and Improvements) Act 1901 - - - - -	225,290	0	0
London County Council (General Powers) Act 1901 - - - - -	44,200	0	0
London County Council (Tramways and Improvements) Act 1902 - - - - -	429,320	0	0
London County Council (Subways and Tramways) Act 1902 - - - - -	90,500	0	0
London County Council (Tramways and Improvements) Act 1903 - - - - -	71,350	0	0
Lunacy Acts - - - - -	460,167	0	0
Industrial Schools Acts - - - - -	1,175	15	10
Inebriates Acts - - - - -	2,023	19	2
Weights and Measures Act 1889 - - - - -	250	0	0
Local Government Act 1888 Council Offices - - - - -	10,000	0	0
Education Acts - - - - -	55,881	19	9
Acts relating to County Bridges - - - - -	16,000	0	0
Tramways Acts - - - - -	1,005,844	9	6
Sale of Gas Acts - - - - -	800	0	0
Electric Lighting Acts - - - - -	800	0	0
Main Drainage - - - - -	636,965	2	1
Any Acts empowering the Council for various Capital Expenditure - - - - -	75,000	0	0
Loans to Metropolitan Borough Councils - - - - -	1,363,997	0	0
Loans to Saint Marylebone Borough Council (for Electric Lighting purposes) - - - - -	1,365,000	0	0
Loans to Guardians - - - - -	750,000	0	0
Loans to Managers of Metropolitan Asylum District - - - - -	305,616	0	0
Loans to School Board for London - - - - -	250,000	0	0
Loans to other Public Bodies - - - - -	94,000	0	0
Loans to sundry persons under the Small Dwellings' Acquisition Act 1899 - - - - -	6,540	0	0
General enlarging power under sanction of the Treasury - - - - -	263,500	0	0
	11,226,945	14	11

THE SCHEDULE—continued.

NET AGGREGATE NEW BORROWING POWERS.

		£	s.	d.	£	s.	d.	£	s.	d.			
For Council	For year ending 31st March 1905 -	1,037,392	0	3	3,087,934	5	1	3,875,281	5	1			
	For six months to 30th Sept. 1905 -	2,050,542	4	10									
For Loans	For year ending 31st March 1905 -	94,384	0	0	787,347	0	0						
	For six months to 30th Sept. 1905 -	692,963	0	0									

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